PEAK MOBILE SOLUTIONS LIMITED

Privacy Policy

Effective Date:

Last updated: 30/10/2026

Executive Summary

This Privacy Policy explains how Peak Mobile Solutions Limited ("Peak", "we") collects, uses, protects and manages personal data. Peak is a business-only service. We handle personal data in two ways:

1) As a **Data Controller**, in relation to information concerning our clients, prospective clients, and authorised users of our platform; and

2) As a **Data Processor**, in relation to personal data uploaded by our clients, including phone numbers and message content belonging to their customers and contacts.

We do not sell personal data. We comply with the Data Protection Act, 2019 and are registered with the Office of the Data Protection Commissioner (ODPC) under registration number 236-9235-BFCB

1. Who we are

Peak Mobile Solutions Limited, registration number PVT-9XUG8MXZ, located at 3rd Floor, The Promenade, General Mathenge Road, Nairobi, Kenya.

Data Protection Officer: Victor Siderra

Email: developer@peakmobile.co.ke

2. Our Roles

Whose data	Our role	Who to contact about your rights
Our clients and their authorised users (account holders)	Data controller: we decide how and why this data is used.	Peak, using the contact details in section 15.
People who receive messages or services from our clients ("Recipients")	Data processor: we act only on the client's instructions. The client is the data controller.	The business that sent you the message. We will forward requests we receive and assist the business in responding.

3. What information we collect

a. Account Data (as controller)

- Registration data: Company name, Business registration and KYC details, name, business email and phone number of account holders and authorised users.
- Billing and transaction data: invoices, payments, top-ups and usage records.
- Activity data: feedback, support messages and preferences.
- Technical data: device type, browser, IP address, log-in times and platform usage logs, collected for security and service improvement.
- Cookies: essential cookies needed for the platform to function and, with your consent, analytics cookies.

b. Recipient Data (as processor)

- Mobile phone numbers and, where the client supplies them, names or other identifiers.
- Message content, sender ID and WhatsApp template details.
- Delivery reports, timestamps, and opt-out and reply records.

4. How we use Account Data and our lawful basis

Purpose	Lawful basis (Data Protection Act, 2019, s.30)
Service delivery: opening and operating your account and providing the Services	Performance of contract
Customer support: handling inquiries, complaints and technical issues	Performance of contract
Security and fraud prevention	Legitimate interest; legal obligation
Legal compliance: KYC, sender ID registration, tax and record-keeping	Legal obligation
Service improvement and aggregated statistics	Legitimate interest
Marketing and communications about Peak services	Consent, or legitimate interest for existing business clients with a free opt-out in every message

Our legitimate interests include maintaining platform security, preventing fraud, improving service performance, ensuring business continuity, and protecting the rights and interests of our clients and users.

5. How we use Recipient Data

Peak processes Recipient Data solely on the documented instructions of its clients, except where otherwise required by law.

We process Recipient Data only to deliver messages and services on our clients' instructions, generate delivery reports, record opt-outs, keep the platform secure, and meet our legal obligations. We do not use Recipient Data for our own marketing, profiling, product development or any other purpose, and we do not sell or share it except with the Sub-processors needed to deliver messages. Each client is responsible for having a lawful basis to message you, and for telling you how it uses your data.

If you receive a message that you did not agree to receive, you may reply STOP (or use the opt-out mechanism contained in the message), contact the business that sent it, or contact us at developer@peakmobile.co.ke so that we may investigate the matter in accordance with our Acceptable Use Policy.

Peak shall, where reasonably practicable and required by law or contract, assist its clients in responding to data subject requests, data protection impact assessments, compliance audits, regulatory inquiries and personal data breach notifications.

6. Data sharing and sub-processors

We may share data with:

- Mobile network operators and SMS aggregators, to deliver SMS, data and airtime;
- Meta Platforms, to deliver WhatsApp messages via the WhatsApp Business Platform;
- Cloud hosting providers, to store and run our platform;
- Other service providers (e.g. analytics, payment processors) under written contracts requiring confidentiality and security;
- Law enforcement or regulators, where required by law.

We do not sell, rent or trade personal data. A current list of Sub-processors is available on request and in Schedule 1 (Data Processing Agreement) to our Terms and Conditions.

7. International transfers

Some of our Sub-processors, including Google Cloud and Meta Platforms, may store or process data outside Kenya. In Netherlands, Belgium, the United Kingdom, Switzerland, Spain, Italy, Finland, Sweden, Poland, Germany and France. We transfer data outside Kenya only in accordance with sections 48 to 50 of the Data Protection Act, 2019, relying on appropriate safeguards (such as contractual data protection clauses) or on countries with adequate data protection laws.

8. Your rights

Under the Data Protection Act, 2019, you have the right to:

- be informed of the use to which your personal data is to be put;
- access your personal data;
- object to the processing of all or part of your personal data, including for direct marketing;
- correct false or misleading data;
- delete false or misleading data, or data no longer needed, subject to legal retention obligations;
- restrict processing in the circumstances allowed by law;
- receive your data in a structured, commonly used format (data portability).withdraw consent at any time where processing is based on consent, without affecting the lawfulness of processing undertaken before such withdrawal.

To exercise these rights about Account Data, contact our Data Protection Officer at developer@peakmobile.co.ke Recipients should contact the business that sent the message; see section 2. We will respond within the timelines set by the Data Protection (General) Regulations, 2021.

You also have the right to lodge a complaint with the Office of the Data Protection Commissioner (www.odpc.go.ke).

9. Data security measures

We implement measures to protect personal data, including:

- Encryption: industry-standard encryption for data in transit and at rest.
- Access control: access restricted to authorised personnel on a need-to-know basis.
- Regular audits: periodic review of our security measures.
- Sub-processor controls: contractual security obligations on our Sub-processors.
- User protection: we encourage you to keep your account credentials private and secure.

We maintain internal security policies and incident-management procedures designed to ensure the confidentiality, integrity and availability of personal data.

10. Data retention

Data	Retention period
Account Data	For the life of the account and 24 months after closure
Billing and transaction records	Five (5) years, as required by tax law
Recipient contact lists and message content	Until deletion is requested by the client or the client account is closed, and in any event deleted within thirty (30) days of account closure, subject to any applicable legal retention obligations
Delivery logs and opt-out records	12 months, then deleted or anonymised

11. Children's privacy

Our platform is not intended for children, meaning persons under the age of 18 years. We do not knowingly collect Account Data from children. Clients must comply with section 33 of the Data Protection Act, 2019 (processing of children's data) when messaging Recipients who may be children.

12. Data breach response

In the event of a data breach affecting personal data, we will:

- Notify regulators: report the breach to the ODPC within seventy-two (72) hours of becoming aware of it, where it relates to Account Data and is likely to result in a real; **a risk to the rights and freedoms of a data subject**;

- Notify our clients: where a breach affects Recipient Data, notify the relevant client without undue delay and, where reasonably practicable, within forty-eight (48) hours, so that the client can meet its own obligations;
- Notify you: inform affected individuals as soon as reasonably practicable where required by law;
- Take corrective action: investigate and take immediate steps to contain the breach and prevent recurrence.

13. Data protection and compliance

We are committed to compliance with the Data Protection Act, 2019 and its regulations. We are registered with the Office of the Data Protection Commissioner as a Data Controller and Data Processor 236-9235-BFCB and continuously review our policies and practices to align with legal requirements and industry standards.

14. Changes to this Policy

We may update this Privacy Policy from time to time. Material changes will be communicated via the platform, website or email at least fourteen (14) days before they take effect. The date at the top shows when this Policy was last updated.

15. Contact us

Email: chat@peakmobile.co.ke

Data Protection Officer: developer@peakmobile.co.ke

3rd Floor, The Promenade, General Mathenge. Nairobi

Phone: 0759422480